

**CHAPTER xliv.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Ayr Burgh.

[20th November 1940.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Ayr Burgh Order Confirmation Act, 1940.

Short title.

SCHEDULE.

AYR BURGH.

Provisional Order to revive the powers for the compulsory purchase of lands for the purposes of the dam or weir authorised by the Ayr Burgh Extension &c. Order 1935 to confer further powers upon the provost magistrates and councillors of the burgh of Ayr with regard to the removal and disposal of refuse and the control of the sale of ice-cream and for other purposes.

WHEREAS the burgh of Ayr (hereinafter called "the burgh") in the county of Ayr is under the government for municipal purposes of the provost magistrates and councillors of the burgh (hereinafter called "the Corporation"):

25 & 26
Geo. 5. c. lv. And whereas by the Ayr Burgh Extension &c. Order 1935 the Corporation were empowered to construct a dam or weir across the river Ayr:

And whereas the period limited by the said Order of 1935 for the compulsory purchase of lands for the purposes of that Order expired on the first day of October one thousand nine hundred and thirty-eight:

And whereas it is expedient that the powers for the compulsory purchase of the lands required for the purposes of the said dam or weir should be revived and that the period within which such powers may be exercised should be extended as by this Order provided:

And whereas it is expedient that powers should be conferred upon the Corporation in relation to the removal and disposal of refuse and the control of the sale of ice-cream and that the further provisions contained in this Order should be enacted:

26 Geo. 5. &
1 Edw. 8.
c. 52. And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

PART I.

PRELIMINARY.

1. This Order may be cited as the Ayr Burgh Short title.
Order 1940.

2. The Ayr Burgh Acts 1873 to 1935 and this Citation.
Order may be cited together as the Ayr Burgh Acts
1873 to 1940.

3. This Order shall come into operation on the date Commence-
of the passing of the Act confirming this Order which ment of
date is in this Order referred to as "the commencement Order.
of this Order."

4. This Order is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Dam.

Part III.—Refuse.

Part IV.—Miscellaneous.

Order
divided
into Parts.

5. In this Order unless the context otherwise Interpret-
requires the following expressions shall have the meanings tation.
assigned to them in this section (that is to say):—

"burgh" means the burgh of Ayr;

"Corporation" means the provost magistrates and
councillors of the burgh;

"daily penalty" means a penalty for every day on
which an offence continues after conviction
therefor;

"dam" means the dam or weir across the river Ayr
authorised by Part V of the Order of 1935;

"domestic refuse" means any dust ashes rubbish
and other refuse arising from or incidental to
the normal occupation of any dwelling-house
shop office cinematograph theatre or other
similar premises but does not include manure
or trade refuse;

"ice-cream" means any preparation sold under the
name of ice-cream or any similar name whether
containing milk or cream or not;

"Order of 1935" means the Ayr Burgh Extension
&c. Order 1935;

Part I.
—cont.

“ sheriff ” means the sheriff of the county of Ayr and includes his substitutes;

“ town clerk ” means the town clerk of the burgh;

“ trade refuse ” means (1) the refuse arising from or incidental to the carrying on of any trade business or manufacture including (a) ashes clinker and flue dust from any kiln engine furnace oven or stove used in connection with any industrial or commercial purpose or process (b) packing material and similar refuse from shops warehouses and workshops (c) fruit and vegetable rubbish (d) rubbish containing or comprising waste animal or fish matter and (e) garage debris and (2) garden rubbish.

PART II.

DAM.

Reviving powers and extending period for compulsory purchase of lands.

6.—(1) The powers granted by the Order of 1935 for the compulsory purchase of lands for the purposes of the dam are hereby revived and extended and shall continue in force and may be exercised by the Corporation before the twenty-ninth day of July one thousand nine hundred and forty-three after which date those powers shall cease.

(2) The powers mentioned in this section shall be deemed to be powers to which the Special Enactments (Extension of Time) Act 1940 shall apply.

PART III.

REFUSE.

Collection and disposal of refuse.

7. Subject to the provisions of this Order the Corporation shall make or cause to be made provision for the effectual scavenging of the burgh in a suitable manner for keeping the streets clean and for the collection disposal or treatment of domestic refuse but the Corporation shall not be bound to collect and remove trade refuse manure or soot otherwise than as provided in this Part of this Order.

Trade refuse.

8. The Corporation may make arrangements with shopkeepers warehousemen occupiers of factories workshops garages business or other premises and with the occupiers of gardens and other persons for the collection removal and disposal of trade refuse manure or soot at such times and on such terms and conditions as the Corporation may determine.

PART IV.

MISCELLANEOUS.

9.—(1) (a) A person shall not carry on the business of a manufacturer or vendor of or dealer in ice-cream within the burgh unless he is registered by the Corporation.

Registration
&c. of
dealers in
ice-cream
and their
premises.

(b) Premises shall not be used for the manufacture for sale or sale of ice-cream or for the storage of ice-cream intended for sale unless such premises are registered by the Corporation.

(c) Any person who contravenes the provisions of this subsection shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The Corporation may refuse to register any such person or premises or (after giving one month's notice in writing to the person registered or in whose name any such premises are registered) may revoke the registration of any such person or premises—

(i) as regards any person on the ground that the public health is or is likely to be endangered by any act or default of the person who is registered or who seeks to be registered as aforesaid in relation to the quality storage or distribution of the ice-cream; and

(ii) as regards any premises on the ground that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the applicant for registration or the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall deliver to the person applying for such registration or the person registered or in whose name the premises are registered a statement in writing of the ground or

Part IV.
—cont.

grounds on which such refusal or revocation is based. Notice of the right to appeal next hereinafter-mentioned shall be endorsed on every such statement.

(c) Any person aggrieved by any such refusal or revocation may appeal to the sheriff provided that such appeal is made within fourteen days from the date of the delivery of the statement referred to in the immediately preceding paragraph of this subsection.

(d) Any person so appealing shall give written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal.

(3) The Corporation may make a charge not exceeding five shillings in respect of the registration of any person or premises under this section.

(4) The provisions of this section shall not in any way affect the operation of the Factories Act 1937.

(5) The provisions of this section shall not apply to any premises used as a club hotel or restaurant or as railway refreshment rooms nor to the sale of ice-cream upon any premises used as a theatre cinematograph theatre music hall concert hall or other place of public amusement unless ice-cream is actually manufactured upon such last-mentioned premises.

Costs of
Order.

10. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed for that purpose which moneys the Corporation are hereby authorised to borrow. Provided that any moneys borrowed by the Corporation for the purposes of this section shall be repaid within five years from the commencement of this Order.

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